

Court No. - 21

Case :- WRIT - C No. - 27918 of 2016

Petitioner :- Harikesh Yadav

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Bhawesh Pratap Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble V.K. Shukla,Acting Chief Justice

Hon'ble Yashwant Varma,J.

Harikesh Yadav is before this Court assailing the validity of the recovery certificate dated 22 February 2016 issued by Tehsildar Sagari, Azamgarh in pursuance to recommendation sent by Executive Engineer, Electricity Distribution Division-II, Azamgarh on 10 February 2016.

On the matter being taken up today, from the side of the petitioner much stress is being laid that the petitioner's financial condition is not good and he is in much financial distress and he submits that in view of this facility of instalments be extended to him so as to enable him to be in a position to deposit the amount due in instalments.

The answer to this request lies under Clause 6.14 of the U.P. Electricity Supply Code, 2005, wherein a clear cut mention has been made that the licensee may extend the facility of instalments to only those consumers who are in financial distress.

Consequently, in the facts of the case and as far as we are concerned, we are not inclined to entertain the writ petition as before us the accepted position is that there are outstanding electricity dues for which recovery proceedings have been initiated and if the petitioner desires that the facility of instalment be extended, he should approach the authority concerned that is provided for under Clause 6.14 of the U.P.

Electricity Supply Code, 2005.

With this observation, the present writ petition stands **disposed of**. This order has been passed with the due assistance of Sri Mohd. Nasir, learned Advocate holding brief of Sri Mehboob Ahamd, counsel for the respondent Nos. 2 and 3.

Order Date :- 6.6.2016

Arun K. Singh